THE WAREHOUSING CORPORATIONS (SUPPLEMENTARY) ACT, 1965

ARRANGEMENT OF SECTIONS

SECTIONS

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THE SCHEDULE.

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THE WAREHOUSING CORPORATIONS (SUPPLEMENTARY) ACT, 1965

ACT NO. 20 OF 1965

[22*nd September*, 1965.]

An Act to supplement the provisions of the Warehousing Corporations Act, 1962.

WHEREAS, in pursuance of clause (1) of article 252 of the Constitution, resolutions have been passed by the Legislatures of certain State to the effect that storage of commodities other than those covered by the Warehousing Corporations Act, 1962 (58 of 1962), in warehouses run by the corporations established under that Act, shall be regulated in those States by Parliament by law.

AND WHEREAS, in consequence thereof it is necessary to supplement the provisions of the said Warehousing Corporations Act for the purposes hereinafter appearing;

BE it enacted by Parliament in the Sixteenth Year of the Republic of India as follows:—

1. Short title, application and commencement.—(*1*) This Act may be called the Warehousing Corporations (Supplementary) Act, 1965.

(*2*) It shall apply to the State specified in the Schedule:

Provided that the Central Government may, by notification in the Official Gazette, add the name of any other State to the Schedule in respect whereof resolutions have been passed by the Legislatures of those States adopting this Act under clause (1) of article 252 of the Constitution in respect of the storage of commodities other than those covered by the Warehousing Corporations Act, 1962 (58 of 1962), and on the issue of any such notification the States so added shall be deem to be States specified in the Schedule within the meaning of this sub-section.

(*3*) It shall come into force on such date[1], as the Central Government may, by notification in the Official Gazette, appoint.

2. Application of the Act with respect to notified commodities.—The Warehousing Corporations Act, 1962 (58 of 1962), shall, in its application to the States for the time being specified in the Schedule, have effect as if in clause (*e*) of section 2 of that Act the words and figures "being a commodity with respect to which Parliament has power to make laws by virtue of entry 33 in List III in the Seventh Schedule to Constitution" had been omitted.

1. 27th November, 1965, *vide* notification No. G.S.R. 1713, dated 17th, November, 1965, *see* Gazette of India, Part II, sec. 3(*i*).

THE SCHEDULE

[*See* section 1(*2*)]

1. Andhra Pradesh.

[1][2. [2][Assam, as it existed immediately before the 21st January, 1972.]]

[3][3.] Gujarat.

[4][3A. Haryana.]

[3][4.] Kerala.

[3][5.] [5][Tamil Nadu.]

[6][5A. Maharashtra.]

[7][5B. Meghalaya.]

[3][6.] [8][Karnataka.]

[9][7. Orissa.]

[10][8.] [11][Punjab, as it existed immediately before the 1st day of November, 1966.]

[10][9.] Rajasthan.

[10][10.] Uttar Pradesh.

[10][11.] West Bengal.]

IndiaCode

1. Ins. by G.S.R. 1283, dated 17-8-1967.
2. Subs. by the North-Eastern Areas (Reorganisation) (Adaptation of Laws on Union Subjects) Order, 1974.
3. "2" to "5" re-numbered as "3" to "6" by G.S.R. 1283, dated 17-8-1967.
4. Ins. by G.S.R. 1003, dated 31-7-1978.
5. Subs. by the Madras State (Alteration of Name) Adaptation of Laws on Union Subjects) Order, 1970.
6. Ins. by G.S.R. 1019, dated 31-5-1971.
7. Ins. by G.S.R. 1200, dated 20-9-1978.
8. Subs. by the Mysore State (Alteration of Name) (Adaptation of Laws on Union Subjects) Order, 1974.
9. Ins. by G.S.R. 1008, dated 21-5-1968.
10. "6" to "9" re-numbered as "8" to "11", *ibid.*
11. Subs. by the Punjab Reorganisation and Delhi High Court (Adaptation of Laws on Union Subjects) Order, 1968.